

University of Lethbridge Capital Markets Club Constitution

Effective Date: Upon ratification by the ULSU

Definitions

This section of the Club's Constitution serves to define key terms and concepts used throughout the document to ensure clarity and consistency in interpretation. The definitions provided herein shall apply to all sections and articles of the Constitution unless expressly stated otherwise. Members are expected to familiarize themselves with these definitions to facilitate effective communication and understanding within the Club's governance framework.

'Accountability': The obligation of the Club, its Executive, and members to act in accordance with this Constitution, ULSU policy, University policy, and applicable law, while promoting transparency and ethical conduct.

'Active Stream': An Analyst Stream that is not Dormant under sections 4.23 through 4.31.

'Analyst': A member who has been admitted to the Analyst Program under section 4. Analyst is a membership designation only; it is not an executive office, carries no signing authority, and does not affect a member's Voting Member rights under section 3.5.

'Analyst Program': The selective technical training program established under section 4, consisting of the Investment Banking Stream and the Sales and Trading Stream. Either Stream may be placed in Dormancy and Reactivated only under sections 4.23 through 4.31.

'Applicable Stream': For the President, Investment Banking, the Investment Banking Stream; and for the President, Sales and Trading, the Sales and Trading Stream. The office of Club President has no Applicable Stream.

'Associate Member': A member of the Club who is not a currently registered University of Lethbridge student, including a faculty or staff member of the University, an alumnus, or another member of the community, as described in sections 3.1 and 3.1A.

'Club', 'CMC', or any name described in sections 1.2 and 1.3': The University of Lethbridge Capital Markets Club, as named in section 1.

'Club President': The Executive officer holding the office established under section 6.2. The Club President is the senior officer of the Club and has no Applicable Stream.

'Completed': Having satisfied every mandatory deliverable, attendance threshold, assessment, conduct requirement, and certification required for the Applicable Stream, as recorded in the Official Analyst Register.

'Confidential Information': Non-public information entrusted to the Club or its members in the course of Club activity, including applicant and member personal information; interview materials and scoring; sponsor, speaker, and alumni contacts and communications; non-

public financial records; and any information a reasonable person would understand to be confidential.

‘Constitutional Amendment’: Any proposed changes or modifications to the Club’s Constitution, subject to the process detailed in section 11.

‘Dormancy’ or ‘Dormant Stream’: The temporary suspension of a Stream’s operations by a Dormancy Declaration under section 4.25. A Dormant Stream remains part of the Analyst Program.

‘Dormancy Declaration’: A resolution of the Executive placing a Stream in Dormancy under section 4.25.

‘Dual Officeholder’: A person who holds two (2) executive offices at the same time under section 6.2D.

‘Election Procedure’: The systematic process governing the nomination, campaign, voting, and tabulation of votes during the election of new Executive members, conducted in accordance with section 9 of this Constitution.

‘Eligible Candidate’: A Voting Member who satisfies every requirement in section 6.2A for the office of Club President, or in section 6.3A for a President office, as of the Nomination Deadline and continues to satisfy those requirements until taking office.

‘Eligible Voting Member’: A Voting Member who is also eligible to hold executive office under section 6.9 and applicable ULSU policy.

‘Executive’: The elected or duly appointed persons holding the five (5) executive offices set out in section 6.1, which may be held by as few as three (3) persons under section 6.2D.

‘Founding Member’: An individual named in the founding Executive under Schedule A, as further described in section 6.13A.

‘Founding Stabilization Period’: The period beginning on ratification and ending on April 30 of the second full academic year following ratification, as further described in section 6.13A.

‘Full Executive’: All persons then holding one or more executive offices and entitled to vote on the matter, each counted once regardless of the number of offices held, excluding vacancies and persons required to recuse themselves from a particular matter.

‘General Meeting’: A gathering of all members called under section 10 of this Constitution to discuss and vote on important Club matters.

‘Good Standing’: A status held by a member who has valid contact information registered on the Club membership list, is not currently suspended, has no overdue mandatory Club property or records, and has complied with any final Club decision made under a fair process.

‘Human Rights Legislation’: The Alberta Human Rights Act and the Canadian Human Rights Act, as amended from time to time, which collectively govern the Club’s non-discrimination obligations. The CMC acknowledges its obligation to comply with both acts

and to uphold principles of equality, diversity, and non-discrimination in all Club activities and interactions.

'Intake': A recruitment and admission cycle for the Analyst Program, during which applications are accepted, reviewed, and decided upon by the Executive.

'Investment Banking Stream': The Analyst Program Stream focused on investment banking, corporate finance, and corporate development, led by the President, Investment Banking.

'Nomination Deadline': The date and time stated in the election notice after which nominations may not be submitted or materially amended.

'Official Analyst Register': The Club-controlled record maintained by the VP, Finance & Internal identifying, for each Analyst, their Stream admission date, required deliverables, attendance, assessment results, completion decision, decision-makers, date of certification, and any corrections or revocations.

'President': The President, Investment Banking or the President, Sales and Trading, holding an office established under section 6.3 or 6.4. References in this Constitution to a "President", the "Presidents", or a "President office" mean either or both of those offices and do not include the Club President, except where a Dual Officeholder holds the office of Club President together with a President office.

'Quorum': The minimum number of Executive members or Voting Members required to be present at a meeting, in person or virtually, for decisions to be valid and binding, as specified in section 10.4.

'Reactivation': The restoration of a Dormant Stream to Active status under section 4.28 or 4.30.

'Reactivation President': A person holding a President office under the exception in section 4.31.

'Sales and Trading Stream': The Analyst Program Stream focused on sales and trading, equity research, and asset management, led by the President, Sales and Trading.

'Stream' or 'Analyst Stream': Either the Investment Banking Stream or the Sales and Trading Stream.

'Technical Assessment': A documented, consistently administered assessment approved before the intake or election cycle and reasonably connected to the duties of the Applicable Stream.

'ULSU': The University of Lethbridge Students' Union.

'University': The University of Lethbridge.

'Voting Member': A currently registered University of Lethbridge student whose name appears on the Club membership list at least seven (7) days before the vote in question, in accordance with section 3.5.

1. Name of the Club

- 1.1 The official name of this organization is the "University of Lethbridge Capital Markets Club", referred to in this Constitution as the "Club" or "CMC".
- 1.2 The Club may also be identified by any of the following names, each of which refers only to the Club: (a) "Capital Markets Club"; (b) "CMC"; (c) "UofL CMC"; (d) "U of L CMC"; (e) "ULeth CMC"; (f) "ULethbridge CMC"; (g) "University of Lethbridge CMC"; (h) "UofL Capital Markets Club"; (i) "U of L Capital Markets Club"; (j) "ULeth Capital Markets Club"; and (k) "ULethbridge Capital Markets Club".
- 1.3 A name listed in section 1.1 or 1.2 includes that name written in any combination of upper- and lower-case letters, with or without spaces, periods, or hyphens between its parts, with or without the word "the" before it, and in the form used in email addresses, social media handles, hashtags, and web addresses.
- 1.4 The names in sections 1.1 through 1.3 may be used only for the Club's official business, including promotional materials, event invitations, social media, and correspondence with external entities, and only by persons authorized by the Executive.
- 1.5 The Club recognizes the importance of maintaining a consistent and recognizable identity within the University of Lethbridge community and the broader professional landscape. As such, members are encouraged to use the Club's full name, "University of Lethbridge Capital Markets Club", in formal settings and professional interactions.
- 1.6 The Club is not affiliated with, and does not represent, any third-party firm, employer, or organization. No member may imply University, ULSU, employer, sponsor, or issuer endorsement in any Club communication or material.

2. Mission of the University of Lethbridge Capital Markets Club

- 2.1 The primary mission of the CMC is to provide a comprehensive experience that enables members to gain a thorough understanding of roles within capital markets and to develop the practical skills and industry knowledge required for careers in investment banking, sales and trading, equity research, asset management, and corporate development.
- 2.2 The Club will pursue this purpose through case competitions, technical workshops, stock pitch and financial modelling exercises, guest speaker sessions, and peer mentorship. Club programming will be structured so that students at all levels of knowledge can participate and progress.
- 2.3 The Club shall hold regular insights sessions, normally weekly during the academic year and available in person or virtually, to analyze market trends and discuss major headlines within the finance industry, thereby increasing members' knowledge and awareness of current events that impact global capital markets.

- 2.4 The CMC is committed to facilitating virtual meetings with industry professionals who represent companies that have, in the past or currently, conducted large-scale transactions or engaged in capital markets activity, allowing members to engage directly with experienced professionals and gain insights into investment banking and markets processes.
- 2.5 The Club shall encourage members in the Investment Banking Stream to collaborate on creating merger recommendations and fairness opinions, engage in discourse on hypothetical transactions, and develop the critical thinking and strategic analysis skills sought by investment banking recruiters.
- 2.6 The Club shall encourage members in the Sales and Trading Stream to develop market analysis skills, participate in stock pitch and trading competitions, and utilize available resources, including the Dhillon School of Business trading room, to build practical familiarity with securities markets and trading environments.
- 2.7 The CMC is dedicated to offering interview support and resume workshops to provide members with the tools and techniques required in recruitment processes for capital markets roles, including investment banking and sales and trading positions.
- 2.8 The Club shall provide opportunities for members to participate as a team in authorized external competitions, including the National Investment Banking Competition for members of the Investment Banking Stream, and analogous competitions for members of the Sales and Trading Stream, representing the University of Lethbridge and showcasing the collective skills and knowledge acquired through Club activities.
- 2.9 The Club aims to provide networking opportunities by arranging attendance at, and engagement with, events hosted by employers and professionals within the capital markets industry.
- 2.10 The CMC is an educational and professional development club. The Club does not manage money on behalf of any person, hold client assets, or provide investment advice. All research, pitches, financial models, and other materials produced by the Club or its members are prepared for educational purposes; nothing produced by the Club or its members constitutes investment, legal, tax, or accounting advice, and no member may represent Club output as professional advice of any kind or imply University, ULSU, employer, sponsor, or issuer endorsement.

3. Membership, Fees, and Voting Members

- 3.1 Membership in the Club is open to all full-time and part-time University of Lethbridge students, to University of Lethbridge faculty and staff, and to members of the community, in accordance with ULSU Bylaw 32. Members who are not currently registered University of Lethbridge students, including faculty, staff, alumni, and other members of the community, are Associate Members.

- 3.1A Associate Members may attend and speak at meetings and participate in activities, but may not vote, count toward quorum, hold executive office, or exercise authority on behalf of the Club.
- 3.1B The Club serves University of Lethbridge students at both the Lethbridge and Calgary campuses. No member may be denied the ability to join, participate, speak, vote, nominate, stand for office, or hold office because of the campus they attend or because they cannot attend in person. In-person participation is encouraged where practicable but is not required for any right or duty under this Constitution.
- 3.2 The Club shall not discriminate contrary to Human Rights Legislation or applicable University or ULSU policy. Without limiting that obligation, decisions shall not be based on race, religious beliefs, colour, sex, gender, gender identity, gender expression, physical disability, mental disability, age, ancestry, place of origin, marital status, source of income, family status, or sexual orientation, as those grounds may be amended by law.
- 3.2A The Club shall not discriminate on the basis of political affiliation, as required by ULSU Bylaw 32.
- 3.3 A person becomes a member by submitting their name and contact information to an Executive member, in person or electronically, and being added to the Club membership list. The official timestamp of the entry on the Club membership list controls for all purposes under this Constitution; the seven-day cutoff in section 3.5 may not be manipulated by delaying entries.
- 3.3A A member may inspect or request correction of their own entry on the Club membership list by contacting the VP, Finance & Internal.
- 3.4 The Club does not charge a membership fee. If a membership fee is introduced, it must not exceed \$20.00 per year, must be approved under the amendment procedure in section 11, and must be reported to the ULSU Vice President Student Life before it is collected.
- 3.4A Before collecting any event fee or cost recovery in connection with Club activities, the Executive shall disclose in advance the estimated costs, the purpose of the activity, any available hardship or subsidy process, and the applicable receipt and reimbursement procedure. Executive approval is required for all cost-recovery events. Non-payment of an optional event fee affects only that member's participation in the relevant activity and does not affect general Club membership or Voting Member status.
- 3.4B Membership fees, if introduced, are non-refundable unless the Club is dissolved or de-ratified before the end of the membership year, in which case a pro-rated refund may be issued in accordance with ULSU policy.
- 3.5 A Voting Member is any member who is a currently registered University of Lethbridge student and whose name appears on the Club membership list at least seven (7) days before the vote in question. All other members may attend meetings, participate in

Club activities, and speak at General Meetings, but may not vote. Personal information collected in connection with the membership list is governed by section 3.5A and section 15 (Confidentiality and Records).

- 3.5A Personal information on the Club membership list shall be collected only for identified Club purposes, limited to information reasonably necessary for those purposes, stored in an approved Club or University-controlled system, and accessed only by Executive members who require it for their duties. The privacy principles in sections 4.10 through 4.14 apply, with necessary modifications, to the membership list. A member may inspect or request correction of their own entry under section 3.3A. The VP, Finance & Internal is the designated records and privacy contact under section 12.4.
- 3.6 The Club shall at all times satisfy the minimum membership and student-control requirements established by ULSU policy, including the requirement under ULSU Policy 16 that the Club's application for ratification list at least twelve (12) members with their email addresses. Voting Member rights are determined under section 3.5. Where this Constitution conflicts with ULSU membership requirements, ULSU policy governs.
- 3.7 The term "Analyst" refers to a member who has been admitted to the Analyst Program under section 4. Analyst is a membership designation only.
- 3.8 A member may resign from the Club at any time by providing written notice to the VP, Finance & Internal, who will remove the member's name from the Club membership list. A member may be removed from the Club membership list by a two-thirds (2/3) vote of the Full Executive where the member: (a) has not participated in any Club activity or communication for more than one (1) full academic year; (b) has submitted false information to the Club; or (c) has had their Club membership revoked in accordance with ULSU policy or a final determination under section 16. Before any involuntary removal, the member shall receive written notice and a reasonable opportunity to respond. Removal from the membership list does not affect any Voting Member rights exercised before the date of removal.

4. The Analyst Program and Application Process

- 4.1 The Club maintains an Analyst Program, being the Club's selective technical training program. The Analyst Program consists of two Streams: the Investment Banking Stream and the Sales and Trading Stream. Membership in the Club under section 3 is not conditional on admission to the Analyst Program. The Club is not required to admit a minimum number of Analysts; admission to either Stream is based solely on the published criteria under section 4.6. Analysts in each Stream participate in a structured program of technical deliverables, workshops, assessments, and supervised practical exercises designed to develop the skills and knowledge required for careers in their respective Stream. Either Stream may be placed in Dormancy, and later Reactivated, only in accordance with sections 4.23 through 4.31. A Stream may be permanently discontinued only by amendment to this section under section 11.3.

- 4.2 Any member may attend General Meetings, speaker sessions, and Club social events, whether or not they are admitted to the Analyst Program. The Executive may designate certain sessions, workshops, or events as Analyst-only based on the technical level of the content. Such designations will be clearly communicated in advance to all members. An event subsidized by ULSU club funding may not be designated Analyst-only and shall be open to all members of the ULSU, as required by ULSU Policy 19.
- 4.3 Applicants to the Analyst Program will submit an application by email to the Club email account by the deadline announced by the Executive. With each intake announcement, the Executive will publish the available seats per Stream, the application and interview deadline, the assessment criteria or scoring rubric, the expected time commitment, any prerequisites, and whether prior unsuccessful applicants receive any preference. Only members who are currently registered University of Lethbridge students may apply to the Analyst Program. The Executive may set, by recorded resolution before each intake, a maximum number of Analysts who may be enrolled in each Stream at one time, and shall publish that maximum with the intake announcement.
- 4.4 The Executive will publish an application template setting out the information required, which will include the applicant's name, program and year of study, relevant coursework or experience, and a short statement of interest identifying whether the applicant is primarily interested in the Investment Banking Stream or the Sales and Trading Stream (see sections 6.3 and 6.4). The template will be made available to all members and circulated with each intake announcement. The template will include a grade summary for prerequisite coursework in finance, accounting, economics, and quantitative methods, as identified by the Executive in the published application template for each intake.
- 4.5 Applicants who submit a complete application will be invited to an interview, which may be conducted in person or virtually at the applicant's choice. Interviews will be conducted by two non-conflicted reviewers, one of whom must be the President responsible for the relevant Stream or, where that President is conflicted or the office is vacant, a non-conflicted Executive member designated by the Executive. Reviewers shall score applicants against the published rubric and record scores contemporaneously. A reviewer with an actual, potential, or reasonably perceived conflict of interest shall disclose it and, where material, step down from that review.
- 4.5A Applicants will receive written notice of the outcome. On request, an unsuccessful applicant will receive brief written reasons for the decision. An applicant may submit one reconsideration request, limited to grounds of procedural error, conflict of interest, or material information that was overlooked. A reconsideration must be decided by two Executive members who did not participate in the original decision, where practicable. No applicant may be penalized, disadvantaged in a future intake, or otherwise treated adversely for making a good-faith reconsideration request or complaint.
- 4.6 The Executive will apply the same published criteria to every applicant. Selection will be based on demonstrated interest, relevant coursework and academic performance, willingness to commit the time the program requires, and readiness to take on its

technical work. Consistent with section 3.2, no applicant will be assessed on any grounds prohibited by Human Rights Legislation.

- 4.6A Applicants will normally be required to hold a minimum cumulative GPA of 3.70 at the time of application. The Executive may admit an applicant below this threshold where the applicant has demonstrated a strong understanding of the relevant technical material or otherwise shown exceptional readiness for the program through their application, interview, coursework, or relevant experience. Any such exception will be recorded in the selection records for that intake.
- 4.7 An unsuccessful applicant remains a member of the Club in full standing, retains any Voting Member rights they hold under section 3.5, and may apply again at the next intake.
- 4.8 The Executive will hold at least one intake per academic year for each Active Stream in the fall semester, and may hold a second intake in the winter semester. An intake may be cancelled only for documented capacity or program-related reasons, and all members shall be notified of any cancellation and the reasons for it.
- 4.9 Applications and interview notes will be retained until June 30 following the intake in which they are received, unless a complaint, reconsideration, or ULSU or University requirement requires a longer hold, and will not be shared outside the Executive.
- 4.10 Personal information shall be collected only for identified Club purposes and shall be limited to information reasonably necessary for those purposes.
- 4.11 Each collection form shall state the purpose of collection, intended uses, persons with access, retention period, and a Club privacy contact.
- 4.12 Access is limited to Executive members who require the information for their duties. Records shall be stored in an approved Club or University-controlled account and shall not be retained in personal accounts or devices longer than necessary.
- 4.13 An individual may request access to or correction of their own application information, subject to lawful limits and the confidentiality of information about other persons.
- 4.14 The Executive shall securely destroy application and interview records at the end of the applicable retention period and document that destruction.
- 4.15 Members admitted to the Analyst Program are expected to maintain the minimum cumulative GPA set out in section 4.6A for the duration of their participation in the program. At least once per academic year, the applicable President shall review the academic standing of Analysts in their respective Stream to confirm this expectation is being met. An Analyst may be asked to confirm their current standing as part of this review.
- 4.16 Where an Analyst's cumulative GPA falls below the minimum in section 4.6A, the applicable President will meet with the member privately to discuss their standing before any change to their status is made. Recognizing that the Club's purpose under section 2 is educational and that academic performance can be affected by

circumstances outside a member's control, the President will approach any such review supportively, with the goal of helping the member continue in the program where reasonable.

- 4.17 Following a review under section 4.16, the Executive may: (a) allow the Analyst to continue in the program, with or without a defined period to restore their standing; or (b) where standing is not restored within a reasonable period, transition the member out of the Analyst Program while they remain a member of the Club in full standing under section 3. A member transitioned out of the program retains all rights of general membership, including any Voting Member rights under section 3.5, and may reapply to the Analyst Program at a future intake under section 4.
- 4.18 The annual academic standing review under section 4.15 shall be conducted by the President, Investment Banking for members in the Investment Banking Stream, and by the President, Sales and Trading for members in the Sales and Trading Stream. Findings from each review shall be reported to the Full Executive and recorded in the Official Analyst Register.
- 4.19 The VP, Finance & Internal shall maintain the Official Analyst Register in a Club-controlled system. For each Analyst, the Register shall record admission date, Applicable Stream, mandatory deliverables, attendance, assessment results, completion decision, decision-makers, date of certification, and any correction or revocation. Access is limited to persons requiring the information for authorized duties.
- 4.20 Before applications open for each intake, the Executive shall publish the mandatory Stream completion standard. The standard must identify required deliverables, attendance threshold, assessment method, submission deadlines, consequences of academic or professional misconduct, permitted extensions, and who decides completion. The standard may not be materially altered for an existing cohort unless required by ULSU or University policy or necessary to correct an obvious error, and no alteration may target an individual.
- 4.21 Substantially similar evidence shall be assessed under the same standard. A reviewer shall disclose and recuse from an actual, potential, or reasonably perceived conflict. Completion requires concurrence of the applicable President and one other non-conflicted Executive member; if the applicable President is conflicted or unavailable, two other non-conflicted Executive members decide.
- 4.22 An Analyst may request correction of an objective factual error in the Official Analyst Register. A request does not permit re-weighting of technical judgment except through the reconsideration process in section 4.5A. Every correction shall preserve an audit trail of the original entry and any changes made.
- 4.23 A Stream is Active unless it has been placed in Dormancy under this section. Dormancy is a temporary suspension of a Stream's operations and does not remove the Stream from the Analyst Program.

- 4.24 The Club President may propose that a Stream be placed in Dormancy only where one or more of the following applies: (a) the President office for that Stream has been vacant for more than sixty (60) days, no Eligible Candidate exists, and the review required under section 6.11B has been completed; (b) the Stream cannot be delivered safely, competently, or consistently with this Constitution or ULSU or University policy, as set out in documented written reasons; (c) no Analysts are enrolled in the Stream and no intake is reasonably viable for the upcoming academic year; or (d) the President for that Stream requests Dormancy in writing. Disagreement with a President's decisions, the conduct or performance of an individual officer or Analyst, or a preference to reallocate resources between Streams is not, standing alone, a ground for Dormancy. Conduct concerns shall be addressed under sections 6.12, 6.13, or 16.
- 4.25 A Dormancy proposal shall be delivered in writing by the Club President to every Executive member. It shall state the grounds under section 4.24, the supporting facts, the proposed arrangements for current Analysts under section 4.27, and any proposed conditions for Reactivation. Where the President office for the affected Stream is filled, that President shall receive at least seven (7) days to submit a written response and may address the Executive before any vote, unless the proposal was made at that President's request. A Dormancy Declaration takes effect only upon approval by: (a) a majority of the Full Executive; or (b) two-thirds (2/3) of the Full Executive where the President for the affected Stream objects in writing, or where the Club President is a Dual Officeholder holding the President office for the other Stream. The vote shall be held at an executive meeting, in person or virtually, and may not be conducted outside a meeting under section 10.8.
- 4.26 Within seven (7) days of a Dormancy Declaration, the Club President shall give written notice of the Declaration and its reasons to all members, to every Analyst in the affected Stream, and to the ULSU. The VP, Finance & Internal shall record the Declaration in the minutes and the Official Analyst Register.
- 4.27 While a Stream is Dormant: (a) no intake is held for that Stream, and neither section 4.8 nor section 6.11 requires an intake or by-election for it; (b) Analysts admitted to that Stream retain their Analyst designation, Club membership, and any Voting Member rights, and their records in the Official Analyst Register are preserved; (c) where reasonably practicable, Analysts near Completion shall be permitted to complete the Stream under the standard published for their cohort, with completion decided under section 4.21, and otherwise their progress is paused without prejudice and credited upon Reactivation; (d) the Stream's curriculum, training materials, records, and contacts are preserved in Club-controlled systems under the custody of the Club President; (e) any sitting President for that Stream continues to hold office and vote, remains responsible for preserving the Stream and preparing a Reactivation plan, and does not deliver Stream programming; (f) no Executive member, including the Club President and the other President, acquires the reserved technical authority of that Stream's President by reason of the Dormancy; and (g) funds budgeted for that Stream may be reallocated only by Executive approval under section 7.5.

- 4.28 A Dormancy Declaration may be reversed by a majority of votes cast at a quorate General Meeting called by the Executive, or called on the written petition of at least five (5) Voting Members delivered to the VP, Finance & Internal. A General Meeting called on petition shall be held within thirty (30) days of delivery. Reversal restores the Stream to Active status, and section 4.31 applies where the President office for the Stream is vacant.
- 4.29 While a Stream is Dormant, the Club President shall review at least once per semester whether the grounds for Dormancy continue, and shall report the findings to the Full Executive and at the next General Meeting. If a Stream has been Dormant for two (2) consecutive academic years, the Executive shall, before the end of the second academic year, either Reactivate the Stream or place before a General Meeting a motion to continue Dormancy for one (1) further academic year, which may be renewed in the same manner.
- 4.30 The Club President, or the President of the Dormant Stream, may propose Reactivation by written proposal to the Executive. The proposal shall set out: (a) the person who holds, or is proposed to hold, the President office for the Stream; (b) a curriculum and annual plan for the Stream; (c) an intake plan and completion standard consistent with section 4.20; and (d) a proposed budget. Reactivation takes effect upon approval by a majority of the Full Executive at an executive meeting, provided that the President office for the Stream is held, or is filled at or before Reactivation, by a person eligible under section 6.3A or section 4.31. The Club President shall give written notice of Reactivation to all members and the ULSU within seven (7) days.
- 4.31 Where a Stream is to be Reactivated, or has been restored under section 4.28, or where a President office is vacant during the Founding Stabilization Period, and no Eligible Candidate who has Completed that Stream exists, the President office for that Stream may be filled by interim appointment under section 6.11 or by by-election. The person filled into the office must be a Voting Member who satisfies every requirement of section 6.3A other than clause (b), and who has passed a Technical Assessment for the Stream that was approved by the Executive before nominations opened and administered by at least two (2) non-conflicted Executive members. An interim appointment under this section requires two-thirds (2/3) of the Full Executive. A Reactivation President holds the full authority of the office, and their term ends at the next annual election under section 9.1. At that election, a Reactivation President may stand for the same office only if no Eligible Candidate who has Completed the Stream has been certified by the Nomination Deadline. This section is an express exception to sections 6.3H and 6.11.

5. The Students' Union

- 5.1 The CMC will abide by all ULSU bylaws and policies, unless otherwise approved by the ULSU General Assembly, and by all applicable University policies.

- 5.2 The CMC acknowledges that it may be placed on probation or de-ratified under ULSU Bylaw 32 and Policy 16, including for contravention of ULSU legislation or University policy.
- 5.3 The VP, Operations & External is the Club's representative to the ULSU Clubs' Council unless the Executive appoints another member by recorded resolution. The representative shall attend Clubs' Council meetings in accordance with Bylaw 33 and Policy 16 and report back to the Executive following each meeting. If the appointed representative cannot attend a Clubs' Council meeting, another Club member or designate may attend in their place.

6. Executive Offices

- 6.1 The Executive of the CMC consists of five (5) executive offices, all elected by the Voting Members of the Club in accordance with section 9, except for the founding Executive, which takes office under section 9.8. The five (5) offices are: Club President; President, Investment Banking; President, Sales and Trading; VP, Operations & External; and VP, Finance & Internal. The five offices shall be held by no fewer than three (3) persons. Offices may be combined only as permitted by section 6.2D.
- 6.2 **Club President:** The Club President is the senior officer of the Club and holds authority over matters affecting the Club as a whole, while authority over the content and administration of each Stream remains with the President for that Stream. The Club President shares the leadership of meetings and Club-wide activities equally with the Presidents. The Club President: (a) chairs executive meetings and General Meetings in rotation with the Presidents under section 10.4A; (b) serves, jointly with the Presidents, as the Club's point of contact with the ULSU and the Dhillon School of Business, and signs documents on the Club's behalf where a ULSU or University process requires the signature of a club president, subject to section 6.6A; (c) initiates and oversees Stream Dormancy and Reactivation under sections 4.23 through 4.31, and acts as custodian of a Dormant Stream's materials and records; (d) coordinates, jointly with the Presidents, cross-stream initiatives involving both Streams, including speaker sessions, networking events, and case competitions; (e) maintains, jointly with the Presidents, the Club's sponsor, speaker, and alumni relationships and the master records of contacts and programming history; (f) prepares the Club-wide annual plan together with the Presidents under section 6.5; (g) may perform routine coordination duties of an absent President under section 6.2C; and (h) holds standing signing authority for Club finances in accordance with section 7.1. The Club President shall attend at least seventy-five percent (75%) of executive meetings in each semester unless excused by recorded Executive resolution, and shall report to the Executive and the membership at least once per semester on Club-wide initiatives, external relationships, and the status of each Stream.

- 6.2A A person is eligible to be nominated, elected, acclaimed, appointed, or to serve as Club President only if, as of the Nomination Deadline or appointment date, the person: (a) is an Eligible Voting Member and is eligible to hold executive office under section 6.9 and ULSU policy; (b) has either Completed at least one Analyst Stream or served as a member of the Executive for at least one (1) academic semester; (c) satisfies clauses (c) through (e) of section 6.3A; (d) has completed a leadership readiness process equivalent to section 6.3D, with the Club-wide governance duties, the Dormancy and Reactivation provisions, and the cross-stream responsibilities of the office substituted for the Applicable Stream curriculum; and (e) is not disqualified under sections 6.3E or 6.12. Sections 6.3F through 6.3H apply to the Club President with necessary modifications. Clause (b) does not apply to the founding Club President named in Schedule A, who is deemed to have satisfied that requirement upon ratification of the Club.
- 6.2B The Club President does not direct or override the curriculum, technical standards, deliverables, team selection, completion standards, or other matters reserved to a President for their Applicable Stream. The Club President may not admit, reject, certify, decertify, disqualify, or discipline an Analyst or candidate except as a non-conflicted reviewer or decision-maker where this Constitution permits any Executive member to act. The Club President may not exercise a power reserved to a President unless the Club President holds that office under section 6.2D, or is independently eligible for the Applicable Stream and acting under section 6.2C. Section 6.6A applies to the Club President. Dormancy may not be used as a substitute for removal, discipline, or the resolution of a disagreement under section 6.6.
- 6.2C The Club President may perform routine coordination duties of an absent President for no more than thirty (30) consecutive days. The Club President may exercise powers reserved to that President only if the Club President is independently eligible for the Applicable Stream under sections 6.3A through 6.3H. Otherwise, the remaining eligible President, the Club President, and the Executive shall allocate essential duties by recorded resolution without conferring the title, vote, signing authority, or reserved technical authority of the vacant or absent office. An acting officer exercises only duties necessary during the absence and may not remove officers, amend policy, fill vacancies, or make unbudgeted commitments except by Executive approval. Where a President office remains vacant for more than sixty (60) days, section 6.11B applies.
- 6.2D A person may hold two (2) executive offices concurrently only in the following combinations, and only if independently eligible for each: (i) the office of Club President and one (1) President office; or (ii) the offices of VP, Operations & External and VP, Finance & Internal. No person may hold both President offices, more than two (2) offices, or any other combination. A Dual Officeholder: (a) has one (1) vote on any matter and counts once toward quorum and the Full Executive; (b) counts as one person for the purposes of sections 7.2, 7.3, and 7.3E, and may not provide both required signatures or approvals on any disbursement; (c) holds each office for its own term and subject to its own eligibility, removal, and vacancy rules, so that loss of

eligibility for, removal from, or resignation from one office does not affect the other unless the relevant decision expressly so provides; (d) where holding the office of Club President and a President office, is subject to the two-thirds (2/3) threshold in section 4.25(b); and (e) counts as one person wherever this Constitution requires a decision by a specified number of Executive members, or by Executive members who did not participate in an earlier decision. No person may hold two offices where doing so would reduce the number of distinct Executive members below the minimum required by ULSU policy.

- 6.2E In the Club President's absence, the Club President's routine duties revert jointly to the President or Presidents who are not the absent Club President, and meetings are chaired under section 10.4A. The powers in sections 4.23 through 4.31 may not be exercised by an acting officer. While the office of Club President is vacant, a Dormancy or Reactivation proposal may be made by either President or by any two (2) Executive members, and requires approval by two-thirds (2/3) of the Full Executive. A vacancy in the office of Club President shall be filled under section 6.11 by a person eligible under section 6.2A. A sitting President may be appointed or elected Club President, in which case section 6.2D applies.
- 6.3 **President, Investment Banking:** The President, Investment Banking must satisfy sections 6.3A through 6.3H through the Investment Banking Stream. The office leads all Club activity relating to investment banking, corporate finance, and corporate development, subject to the joint coordination of cross-stream initiatives under section 6.2(d). Responsible for the Club's financial modelling and valuation curriculum, the preparation and selection of teams for investment banking case competitions, and outreach to banking and advisory professionals and alumni. The President, Investment Banking approves technical standards and quality control for Investment Banking deliverables, oversees fair team-selection processes, maintains Investment Banking Stream completion records with the VP, Finance & Internal, and reports at least once per semester on curriculum delivery, Analyst progression, competitions, and succession readiness. Holds standing signing authority for Club finances in accordance with section 7.1.
- 6.3A A person is eligible to be nominated, elected, acclaimed, appointed, or to serve as President only if, as of the Nomination Deadline or appointment date, the person: (a) is an Eligible Voting Member and is eligible to hold executive office under section 6.9 and ULSU policy; (b) has been formally admitted to and has Completed the Applicable Stream; (c) has remained in Good Standing for the immediately preceding academic term or, for the first election following ratification, since admission to the Applicable Stream; (d) has completed the confidentiality, conflict-of-interest, records-handling, and financial-control acknowledgements required by the Executive; (e) has returned all overdue Club property, records, credentials, and funds; (f) has completed the leadership handover or candidate orientation prescribed under section 6.3D; and (g) is not disqualified under sections 6.3E or 6.12. The Stream Completion requirement in clause (b) does not apply to the founding Presidents named in Schedule A, who are

deemed to have satisfied that requirement upon ratification of the Club. Clause (b) is also subject to the Reactivation exception in section 4.31. A person seeking the office of Club President must separately satisfy section 6.2A.

- 6.3B Completion of one Analyst Stream does not establish eligibility for the President office assigned to the other Analyst Stream. Dual eligibility requires separate Completion of both Streams. Informal participation, attendance at public workshops, outside coursework, employment, personal investing, or equivalent experience does not replace Completion of the Applicable Stream.
- 6.3C Admission to an Analyst Stream does not guarantee Completion, candidacy, office, or continued participation. The Club is not required to certify any minimum number of Analysts or candidates. Certification shall be based only on the published requirements and documented results.
- 6.3D Before certification, a prospective President shall complete a standardized leadership readiness process consisting of: (a) review of this Constitution and applicable ULSU policies; (b) review of the Applicable Stream curriculum and annual plan; (c) financial-signing and records-security training; (d) disclosure of actual, potential, or reasonably perceived conflicts; and (e) a written acknowledgement of the duties, time commitment, confidentiality obligations, and transition requirements of office.
- 6.3E A person is ineligible while subject to: (a) a current suspension imposed under a fair Club, ULSU, or University process; (b) an unresolved failure to return Club funds, property, records, or credentials after written demand and a reasonable opportunity to cure; (c) a final finding of material dishonesty in a Club selection, election, financial, confidentiality, or records process; or (d) another mandatory disqualification under ULSU or University policy. An allegation alone does not disqualify a person.
- 6.3F Eligibility is continuing. A President shall promptly disclose any change affecting eligibility. Loss of a mandatory qualification creates a temporary suspension of the powers unique to the office pending review under section 6.3G. Loss of student or ULSU eligibility creates a vacancy when required by ULSU policy.
- 6.3G Before a final determination of ineligibility, the person shall receive written particulars, access to the material relied upon subject to lawful confidentiality limits, at least seven (7) days to respond, and a decision with brief written reasons from at least three non-conflicted Executive members. A curable administrative deficiency may be cured within seven (7) days. Technical non-completion, lack of Stream Completion, and mandatory ULSU ineligibility are not curable by Executive waiver.
- 6.3H The requirements in sections 6.3A through 6.3H apply notwithstanding acclamation, vacancy, urgency, acting service, interim appointment, snap election, unanimous consent, or absence of another candidate. Except as expressly provided in section 4.31, the Executive and membership have no authority to waive, deem satisfied, or retroactively create a mandatory qualification. Any purported election or appointment of an ineligible person is void upon determination under section 6.3G, subject to ULSU direction and protection of good-faith third parties.

- 6.4 **President, Sales and Trading:** The President, Sales and Trading must satisfy sections 6.3A through 6.3H through the Sales and Trading Stream. The office leads all Club activity relating to sales and trading, equity research, markets, and asset management, subject to the joint coordination of cross-stream initiatives under section 6.2(d). Responsible for the Club's markets and trading curriculum, use of the Dhillon School of Business trading room, the preparation and selection of teams for stock pitch and trading competitions, and outreach to markets professionals and alumni. The President, Sales and Trading approves technical standards and quality control for Sales and Trading deliverables, oversees fair team-selection processes, maintains Sales and Trading Stream completion records with the VP, Finance & Internal, and reports at least once per semester on curriculum delivery, Analyst progression, competitions, and succession readiness. Holds standing signing authority for Club finances in accordance with section 7.1.
- 6.4A Each President shall: (a) attend at least seventy-five percent (75%) of executive meetings in each semester unless excused by recorded Executive resolution; (b) deliver or arrange the mandatory Stream programming approved in the annual plan; (c) provide monthly written portfolio updates during September through April; (d) preserve Club records and credentials in Club-controlled systems; (e) comply with approved budgets and two-approval financial controls; and (f) complete transition obligations by the applicable deadline. Failure to meet these requirements is assessed under section 6.12 and does not create automatic removal without the required fair process.
- 6.4B A President may administer the Applicable Stream but may not alone admit, reject, certify, decertify, disqualify, or discipline an Analyst or candidate. Every such decision requires at least one additional non-conflicted reviewer, the published criteria, and a contemporaneous written record.
- 6.5 The two Presidents hold equal authority with respect to their respective Streams and jointly lead the Club's technical and Analyst programming. Each President sets the Stream component of the annual plan for their Applicable Stream, and the Club President, together with both Presidents, prepares the Club-wide annual plan for Executive approval. Each President is the primary point of contact for matters specific to their Applicable Stream and is accountable to the Executive for the activities within their own portfolio.
- 6.6 Where the Presidents do not agree on a matter that falls outside either portfolio, or that affects both, the Club President shall first attempt to resolve the disagreement. If it is not resolved, the matter will be decided by a simple majority vote of the Full Executive. The Club President may not decide a matter within a single President's portfolio over that President's objection.
- 6.6A No individual Executive member may bind the Club to a contract, expenditure, public position, sponsorship, or commitment unless authorized by this Constitution, an approved budget, or a recorded resolution of the Executive.

- 6.6B In a genuine emergency affecting safety, legal compliance, property, funds, or a filing deadline, the Club President or a President may take reasonably necessary temporary action after consulting another Executive member where practicable. The action must be reported promptly and submitted for ratification at the next executive meeting.
- 6.7 **VP, Operations & External:** Supports the Club President and both Presidents across all operational and external-facing functions of the Club. Responsible for the coordination of Club events, as well as all case competition and stock pitch competition logistics, including team registration, deadline tracking, travel coordination, and submission requirements. Manages all Club social media, external communications, and member recruitment. Maintains the Club's public-facing brand, operational calendar, and any Club website or external materials. Holds signing authority as the alternate signatory in accordance with section 7.1.
- 6.8 **VP, Finance & Internal:** Maintains the Club bank account and complete records of all income and expenses. Administers event cost recovery and member reimbursements in accordance with section 3.4A, applies for ULSU club funding, and manages all associated reporting obligations. Records and retains meeting minutes, issues meeting notices as per section 10.3, maintains the official Club membership list, and coordinates the annual re-ratification submission to the ULSU. Presents a financial report to the Executive and full membership at least once per semester in accordance with section 7.4. Holds standing signing authority for Club finances in accordance with section 7.1.
- 6.9 Only current University of Lethbridge students may hold an executive office. No member of the ULSU Executive Council may hold an executive office in the Club, in accordance with ULSU Bylaw 32. The majority of the Executive must be undergraduate students at all times, in accordance with ULSU Policy 16. The majority is calculated by the number of persons holding executive office, with a Dual Officeholder counted once. An Executive member who ceases to be a current student shall disclose the change to the Executive immediately. Where the loss of student status is inadvertent and correctable, the Executive may grant a short cure period consistent with ULSU policy before declaring a vacancy; otherwise, the office becomes vacant.
- 6.10 The Executive body is collectively responsible for the governance of the Club, including setting the annual plan, managing Club finances, representing the Club to the ULSU and the University, maintaining the membership list, and submitting all documentation required for ratification and reporting. Each Executive member shall act honestly, in good faith, and with reasonable care for the Club's purposes; protect confidential information; comply with approved budgets and applicable policy; preserve Club records; and avoid using their office for personal benefit.
- 6.11 A vacancy in any executive office shall be announced to all Voting Members within three (3) days of the vacancy arising. Eligible members shall have at least seven (7) days to express interest before an interim appointment is made. The remaining Executive may appoint an eligible Voting Member on an interim basis by majority vote,

and the appointee shall not vote on their own appointment. An interim appointment must be ratified by the Voting Members at a General Meeting held within thirty (30) days of the appointment, failing which the office becomes vacant again. A ratified appointment continues until the earlier of: (a) the election of a successor at a by-election; or (b) the next annual election. If the vacancy reduces the Executive below quorum, the Club shall seek direction from ULSU before taking non-routine action. A vacancy in the office of Club President may be filled on an interim basis or at a by-election only by a person eligible under section 6.2A. A vacancy in a President office may be filled on an interim basis or at a by-election only by an Eligible Candidate for the Applicable Stream. If no Eligible Candidate exists, the office remains vacant and essential duties are allocated under section 6.2C; except as expressly provided in section 4.31, the Executive shall not lower, waive, or deem satisfied the qualifications for President. A by-election shall be held within thirty (30) days where an Eligible Candidate exists and ULSU policy permits. A by-election is not required for the President office of a Dormant Stream.

- 6.11A Each President shall identify and develop a reasonable succession pool within the Applicable Stream, but may not promise office, manipulate completion standards, provide preferential assessment, or use succession planning to restrict a fair election. At least once per semester, the Executive shall review whether at least two Analysts are progressing toward eligibility in each Stream. This review does not require the Club to certify an unqualified person.
- 6.11B If a President office remains vacant for more than sixty (60) days, the Executive shall notify ULSU and document the operational plan, and the Club President shall lead a review of whether the Applicable Stream can continue safely and competently. Where the review finds that a ground in section 4.24 is met, the Club President may propose Dormancy under section 4.25. Neither the remaining President nor the Club President acquires permanent authority over the vacant Stream solely because of the vacancy.
- 6.12 A motion to remove an Executive member from office may be brought by any Executive member, or by a written petition signed by at least five (5) Voting Members and delivered to the VP, Finance & Internal or, where that officer is the subject of the motion, to the Club President. The motion shall be decided at a General Meeting. A written removal motion must identify the alleged conduct, relevant duty or rule, and material facts with sufficient detail to permit a response.
- 6.12A The affected Executive member shall receive the removal motion and reasonably available supporting material at least fourteen (14) days before the meeting, may submit a written response, and may address the meeting before deliberation.
- 6.12B Any person with a material conflict shall not investigate, chair, act as scrutineer, or vote on the motion. Voting shall be by secret ballot. Removal requires two-thirds (2/3) of votes cast by eligible Voting Members present while quorum is maintained.

- 6.12C Where immediate action is reasonably necessary to protect safety, funds, records, systems, or legal compliance, the non-conflicted Executive members may temporarily suspend the relevant Executive member's access or authority until the meeting but may not impose final removal. Reasons must be recorded and the measure must be no broader or longer than necessary.
- 6.12D A removal motion concerning a Dual Officeholder shall state each office from which removal is sought. Removal from one office does not remove the person from the other office unless the motion expressly seeks, and the meeting separately approves, removal from both.

6.13 Founding Member Provisions

- 6.13A For the purposes of this section, a "Founding Member" is an individual named in the founding Executive under Schedule A. The "Founding Stabilization Period" begins on ratification and ends on April 30 of the second full academic year following ratification. Except where this section expressly states otherwise, the powers granted to Founding Members under section 6.13 expire automatically at the end of the Founding Stabilization Period and have no further effect thereafter. The powers in this section may be exercised by a Founding Member whether or not they remain a student, as an express exception to section 3.1A.
- 6.13B This subsection provides an expedited process, separate from and in addition to the ordinary removal process in section 6.12, to remove the Club President or a President who is unfit to continue in office. "Unfit" means one or more of: (a) a serious breach of this Constitution or of ULSU or University of Lethbridge policy; (b) conduct that materially endangers the Club's standing, finances, records, or ratification; (c) incapacity or sustained failure to perform the duties of the office; or (d) conduct that brings the Club into serious disrepute. Disagreement with the decisions of the Club President or a President, standing alone, does not constitute unfitness.
- 6.13C An expedited removal may be initiated by any Founding Member by delivering written notice to the other members of the Executive stating the officer concerned and, for a Dual Officeholder, each office concerned, and the grounds under section 6.13B. Within seventy-two (72) hours of the notice, the Founding Members will convene, in person or virtually, to vote. The officer who is the subject of the motion does not vote but will, where reasonably practicable, be given the opportunity to respond before the vote. Removal is effected by a two-thirds (2/3) vote of the Founding Members eligible to vote on the motion, takes effect immediately, and will be recorded in the minutes and reported to the full membership and the ULSU within seven (7) days.
- 6.13D Upon an expedited removal, a Founding Member selected by a majority of the remaining Founding Members will immediately assume the vacated office on an interim basis, provided that the Founding Member is a currently registered student as required by section 6.9 and that holding the interim office together with any office the Founding Member already holds is permitted by section 6.2D. For the interim period only, the requirements in sections 6.2A(b) and 6.3A(b) do not apply to a Founding

- Member assuming office under this subsection, as an express exception to section 6.3H. The interim officer holds the full authority of the office, including signing authority under section 7, for the interim period only. The interim appointment lasts until the earlier of: (a) the election of a successor for that single office at a General Meeting held within thirty (30) days of the removal, conducted under sections 9.3 through 9.7; or (b) the next annual election under section 9.1. The interim officer may stand in that election if eligible under section 6.2A or 6.3A, as applicable, but may not, during the interim period, initiate a removal under this section, amend Club policy, fill other vacancies, or make unbudgeted financial commitments except by approval of the Full Executive. If no Founding Member is able to assume the office under this subsection, the vacancy is filled under section 6.11.
- 6.13E Members and executives will not disclose or use Confidential Information, as defined in the Definitions section of this Constitution, outside the Club except as required to carry out Club duties, as authorized by the Executive, or as required by law or ULSU or University policy. A member reasonably believed to have breached this subsection will be given written notice and a reasonable opportunity to respond before any consequence is imposed. Where a breach is found, a proportionate consequence up to and including removal from the Analyst Program and the Club membership list may be imposed. During the Founding Stabilization Period, the consequence is determined by a majority of the Founding Members; after that period, this confidentiality obligation continues in force and the consequence is determined by a two-thirds (2/3) vote of the Full Executive. No consequence may exceed the Club's authority under ULSU and University of Lethbridge policy.
- 6.13F At any time, and notwithstanding the Founding Stabilization Period, the Founding Members may initiate dissolution of the Club only where they determine in good faith, and set out in written reasons, that the Club can no longer operate consistently with its purpose, this Constitution, or ULSU and University of Lethbridge policy. Dissolution under this subsection is initiated by a two-thirds (2/3) vote of the Founding Members then living and reachable, recorded in the minutes with reasons. Before any such dissolution takes effect, the Founding Members shall (a) provide written notice and the reasons to all Voting Members and to the ULSU at least fourteen (14) days in advance, and (b) complete any process, notice, approval, or membership vote that ULSU policy requires. Dissolution takes effect only in accordance with ULSU policy governing club dissolution and de-ratification, which governs in the event of any conflict. On dissolution, all Club funds, property, records, and accounts will be disposed of under section 12.3 and ULSU policy, and no Founding Member has any personal claim to Club funds or property. Nothing in this subsection overrides any right of the Voting membership or the ULSU to continue, reconstitute, or re-ratify the Club in accordance with ULSU policy.
- 6.13G Nothing in this section limits the ordinary removal process in section 6.12 or the ordinary dissolution process in section 12.3, both of which remain available to the Voting membership at all times. Except for the confidentiality obligation in section

6.13E and the founder-initiated dissolution power in section 6.13F, which both continue in force indefinitely, all powers granted to Founding Members under this section expire at the end of the Founding Stabilization Period.

- 6.13H The powers in this section 6.13 operate independently of, and do not suspend, the snap election process in section 9.10, the removal process in section 6.12, or the vacancy process in section 6.11. An expedited removal under sections 6.13B through 6.13D may be initiated only on the grounds of unfitness in section 6.13B, and may not be used solely to pre-empt a validly called snap election or a pending removal motion. Where an expedited removal and a snap election are validly initiated concerning the same office at or about the same time, the process that was validly initiated first governs that office, and the later process is stayed as to that office until the first concludes. A founder-initiated dissolution under section 6.13F neither stays, nor is stayed by, any election, removal, or vacancy process. In every case, mandatory ULSU and University rules prevail under section 14.2.

7. Signing Authority

- 7.1 The Club President, each President, and the VP, Finance & Internal hold standing signing authority for the finances of the Club. The VP, Operations & External holds signing authority as the alternate signatory. A Dual Officeholder holds a single signing authority and counts as one person under section 7.2. Alternate signing authority may be exercised only when the unavailability or conflict of a standing signatory is recorded by the Executive.
- 7.2 A minimum of two (2) signatures, from two different persons holding signing authority, with a Dual Officeholder counted as one person, is required on any cheque, counter withdrawal, electronic transfer, or other disbursement from a Club account.
- 7.3 No Executive member may act as one of the two signatories on a reimbursement payable to themselves. Any such reimbursement requires the signatures of two other Executive members holding signing authority.
- 7.3A An Executive member or member involved in a decision shall promptly disclose any actual, potential, or reasonably perceived conflict of interest. The disclosure shall be recorded in the minutes.
- 7.3B The conflicted person shall not receive confidential decision materials beyond what fairness requires, participate in deliberation, vote, or count toward quorum on that item.
- 7.3C A related-party transaction may proceed only if it is demonstrably fair to the Club, approved by a majority of non-conflicted Executive members, and documented.
- 7.3D Gifts or benefits that could reasonably influence a Club decision shall be declined or disclosed and dealt with under an Executive-approved policy.
- 7.3E No person may both request and provide either required approval for the same payment.

- 7.4 The VP, Finance & Internal will maintain complete records of all income and expenses, will present a financial report to the Executive and to the membership at least once per semester, and will prepare a financial statement at the end of each academic year. The VP, Finance & Internal shall provide copies of the previous and current years' financial statements to the ULSU within fifteen (15) business days of a request, as required by ULSU Bylaw 32.
- 7.5 The Executive shall approve an annual budget and record it in the minutes. Unbudgeted expenditures above a threshold set by ULSU policy or, if none, \$250, require prior Executive approval.
- 7.6 Every disbursement must have a receipt or equivalent record, stated Club purpose, payee, amount, date, and evidence of two independent approvals. Blank cheques and pre-signed authorizations are prohibited.
- 7.7 The VP, Finance & Internal shall reconcile the account monthly. A non-preparing Executive member shall review the reconciliation at least once per semester.
- 7.8 Cash collections shall be counted by two persons and deposited promptly.
- 7.9 Alternate signing authority is activated for a specific transaction or period and recorded in writing.

8. Executive Term of Office

- 8.1 The Club is ratified annually. Ratification runs from the date of ratification and ceases on April 30 of that academic year, unless alternative arrangements are made with the ULSU. The Club's ratification period and an officer's term of office are distinct; the expiry of a ratification period does not automatically terminate an officer's term, which runs as set out in section 8.2.
- 8.2 Executive terms of office run from May 1 to April 30 of the following academic year. An Executive elected under section 9.1 takes office on May 1 immediately following the election. The founding Executive takes office on ratification and serves until April 30 of that academic year.
- 8.3 Within fourteen (14) days of an election, and in any event before the incoming Executive takes office, the outgoing Executive will transfer to the incoming Executive all Club records, financial records and account information, the membership list, sponsor and speaker contacts, training materials, and access to the Club email account. The outgoing Executive shall complete a signed transition checklist, update all bank mandates and account signatories, reset all Club passwords, transfer recovery-email access, revoke former Executive access to Club systems, and delete Club data from personal accounts and devices, subject to applicable retention obligations.

9. Executive Elections

- 9.1 An election for the new Executive will be held every year, no later than April 15.
- 9.2 The exact date will be chosen jointly by the Club President and both Presidents and announced to the Club membership at least thirty (30) days in advance. An election will not be scheduled on a statutory holiday or on a day the University is closed. Where they cannot agree on a date, the matter will be determined by a majority vote of the Full Executive in accordance with section 6.6. The election notice shall include the nomination opening and closing dates, the method of submitting nominations, the written consent requirement for all nominees, the eligibility verification process, how candidates may access member communications on equal terms, campaign conduct standards, and instructions for both in-person and virtual participation.
- 9.2A At least thirty (30) days before the election, the Executive shall appoint a non-candidate Eligibility Officer. The Eligibility Officer may be the VP, Finance & Internal or another non-conflicted person approved by the Executive. The Eligibility Officer verifies documentary eligibility but does not choose among eligible candidates.
- 9.2B A nomination for Club President or President is complete only when the Eligibility Officer has issued a written certificate confirming each mandatory requirement. The certificate shall identify the records reviewed and date of verification without disclosing confidential Analyst information to the membership.
- 9.2C An Eligible Voting Member may submit a written eligibility challenge within three (3) days after the candidate list is circulated. The challenge must identify a specific requirement and factual basis. Frivolous, retaliatory, or unsupported challenges may be dismissed. A non-conflicted panel of three Executive members, or a neutral person designated by ULSU where fewer than three are available, shall decide before ballots are issued.
- 9.2D A Club decision on eligibility is final within the Club, subject to correction of fraud, material undisclosed facts, manifest clerical error, or any review or direction available from ULSU or the University. No ballot shall include an uncertified candidate.
- 9.3 Every election shall be held as a hybrid meeting. The notice under section 9.2 shall identify an in-person location on the Lethbridge campus, which will ordinarily be the trading room (M4011) at the Dhillon School of Business, and, where practicable, on the Calgary campus, together with instructions for attending and voting virtually. In-person attendance is encouraged but not required, and members attending virtually may vote on the same terms as members attending in person.
- 9.4 Each executive office is elected separately. A candidate stands for one named office and may not stand for more than one office in the same election, except that a candidate may stand for the office of Club President and for one (1) President office in the same election or for both VP offices, provided the candidate is eligible for each office and, where section 9.2B applies, is certified under it. The result for each office is

determined independently. A candidate elected to both offices holds them as a Dual Officeholder under section 6.2D.

- 9.5 Elections shall be administered by at least one non-candidate scrutineer approved by the Voting Members. All contested elections shall be conducted by secret ballot. The election method must verify eligibility, prevent duplicate voting, preserve secrecy, permit simultaneous in-person and remote participation, and produce a results record that does not reveal individual choices. Candidate access to ballots or voter-specific election data is prohibited. Acclamation may be permitted only if nominations have closed and no other eligible candidate has come forward, and only where ULSU policy permits it. Any objection must be raised before adjournment unless the facts could not reasonably have been known earlier.
- 9.6 In the event of a tie, the following procedure applies, in order: (a) a second vote will be held between the tied candidates only; (b) if the second vote is also tied, each tied candidate will make a closing statement of no more than three (3) minutes, followed by a third and final vote; and (c) if the third vote is also tied, the deciding vote is cast by the outgoing Club President, provided they are not a candidate for the office being decided. If the outgoing Club President is such a candidate, the deciding vote is cast by the outgoing President, Investment Banking or, if that officer is also such a candidate, the outgoing President, Sales and Trading. If both outgoing Presidents are also such candidates, the outgoing VP, Operations & External casts the deciding vote. If no outgoing Executive member is eligible to cast it, the tie will be resolved by lot, drawn by the scrutineer appointed under section 9.5 in the presence of the Voting Members attending in person or virtually, using a method agreed upon by the tied candidates before the draw and visible to all attendees. The result shall be recorded in the minutes.
- 9.7 No Voting Member will be asked or required to abstain or withdraw from a vote for the purpose of producing an odd number of voters.
- 9.8 The founding Executive is identified in Schedule A of this Constitution and takes office upon ratification. The founding Executive will be confirmed by a vote of the Voting Members at the first General Meeting following ratification. The first annual election under section 9.1 will take place no later than April 15 of the academic year in which the Club is ratified, unless the Club is ratified after February 1, in which case the first annual election will be held no later than April 15 of the following academic year, or unless ULSU approves another date in writing. A date in this Constitution automatically yields to a mandatory ULSU deadline, and the Executive shall notify members of any adjusted date.
- 9.9 Within fifteen (15) business days of the results of any election, including a by-election or snap election, the VP, Finance & Internal shall provide the ULSU with proof of the election and an up-to-date list of the Executive, including contact information, as required by ULSU Bylaw 32. Any later change to the Executive shall be reported to the ULSU promptly.

9.10 Snap Election

- 9.10A A snap election is an extraordinary election of the entire Executive held before the annual election required under section 9.1. A snap election is separate from the removal process in section 6.12 and the vacancy process in section 6.11, and may be used only in accordance with this section.
- 9.10B For the purposes of this section, a “senior Voting Member” is a Voting Member (as defined in section 3.5) who has been continuously on the Club membership list for at least twelve (12) months. On the initial ratification of the Club and until twelve (12) months have elapsed, every Voting Member whose name was on the Club membership list at ratification is deemed a senior Voting Member.
- 9.10C A snap election may be called by a written petition signed by at least two-thirds (2/3) of the senior Voting Members, or by a two-thirds (2/3) vote of the Full Executive. The petition or resolution must state the reason for the snap election and be delivered to the VP, Finance & Internal, who will record it in the minutes.
- 9.10D Once validly called, the snap election will be held at a General Meeting not fewer than fourteen (14) and not more than thirty (30) days after the call. Notice of the meeting and of every office to be contested will be given to all members at least seven (7) days in advance.
- 9.10E The snap election will be conducted for all five (5) executive offices in accordance with the procedures in sections 9.3 through 9.7, including eligibility, method of voting, and tie-breaking. Section 9.4 applies to candidacies.
- 9.10F An Executive elected at a snap election takes office immediately upon the conclusion of the election and serves for the remainder of the term that would have applied under section 8.2, ending on April 30 of the current academic year. The holding of a snap election does not change the date of the next annual election required under section 9.1.
- 9.10G The outgoing Executive will complete the transition required under section 8.3 within fourteen (14) days of the snap election. Until the transition is complete, the outgoing Executive remains responsible for the safekeeping of Club records, finances, and accounts.
- 9.10H A snap election may not be called within sixty (60) days before a scheduled annual election under section 9.1, to avoid duplication with the regular election cycle.

10. Meetings and Voting Procedures

- 10.1 The Executive will meet at least once per month throughout the academic year, from September to April.
- 10.2 The Club will hold at least two (2) General Meetings of the membership per academic year, one in the fall semester and one in the winter semester.

- 10.3 Notice of a General Meeting will be given to all members at least seven (7) days in advance. Notice of an executive meeting will be given at least forty-eight (48) hours in advance. Notice shall be delivered to the last registered email address on the Club membership list.
- 10.3A Notice for elections, removal motions, disciplinary matters, constitutional amendments, Stream Dormancy or Reactivation, and dissolution must also state the specific purpose of the meeting, the nature of the motion or decision to be made, the relevant constitutional provision, and the proposed text of any amendment. If quorum is lost during a meeting, substantive business must stop and the meeting may be adjourned and reconvened on at least forty-eight (48) hours' notice.
- 10.4 Quorum for an executive meeting is a majority of the Full Executive. Quorum for a General Meeting is twelve (12) Voting Members, or a majority of all Voting Members, whichever is fewer. Quorum is calculated when the meeting is called to order and shall be rechecked before any vote that is subsequently challenged.
- 10.4A Executive meetings and General Meetings are chaired by the Club President and the Presidents in rotation, or as they otherwise agree in advance. Where the scheduled chair is absent, conflicted on a matter, or the subject of a motion, another of them who is not conflicted chairs the meeting or, if none is available, a non-conflicted Executive member chosen by the meeting.
- 10.5 Except where this Constitution provides otherwise, all decisions will be approved by a simple majority of votes cast, excluding abstentions.
- 10.5A Where a vote at an executive meeting is tied, the Club President may cast a deciding vote. The deciding vote is not available where the Club President is conflicted, on any matter within a single President's portfolio, or on removal, discipline, elections, appointments, Dormancy, Reactivation, constitutional amendments, or dissolution; in those cases a tied vote fails.
- 10.6 Minutes will be recorded for every executive meeting and General Meeting and retained by the VP, Finance & Internal. Minutes will be made available to any member on request.
- 10.7 Every executive meeting and General Meeting shall offer virtual participation, and any meeting may be held entirely virtually. The notice of each meeting shall include instructions for joining virtually and, where an in-person location is offered, that location. A person attending virtually counts toward quorum, counts as present for every attendance requirement under this Constitution, and may speak and vote on every matter on the same terms as a person attending in person. The virtual method must allow all participants to hear one another in real time. In-person attendance is encouraged where practicable but is not required.
- 10.7A Where this Constitution requires a secret ballot, the ballot may be conducted by an electronic voting method approved by the Executive before the meeting and administered by the scrutineer or another non-conflicted person. The method must

verify each voter's eligibility, prevent duplicate voting, preserve the secrecy of each vote, allow in-person and virtual attendees to vote on the same terms, and produce a results record that does not reveal individual choices.

- 10.8 Where a decision must be made between scheduled meetings on a time-sensitive matter, the Executive may vote by email or another electronic method approved by the Executive. Votes outside a meeting are not permitted for officer removal, constitutional amendments, elections, member discipline, Stream Dormancy or Reactivation, or dissolution; those matters shall be decided at a meeting, which may be held virtually under section 10.7 and may use an electronic ballot under section 10.7A. The motion and deadline shall be sent to all Executive members, all responses preserved, and the name and vote of each Executive member recorded in the minutes of the next meeting. A vote not cast within seventy-two (72) hours of the vote being called will be recorded as an abstention.

11. Amendment of the Constitution

- 11.1 An amendment to this Constitution may be proposed by any Executive member, or by a written petition signed by at least five (5) Voting Members. A petition may be delivered electronically; the VP, Finance & Internal shall verify the petition without disclosing the identities of signatories more broadly than necessary.
- 11.2 The proposed amendment will be circulated in writing to all members at least seven (7) days before the General Meeting at which it will be considered.
- 11.3 An amendment requires approval by a majority of the Full Executive and two-thirds (2/3) of votes cast by Voting Members at a quorate General Meeting. An amendment to section 2 (Mission) or section 4 (Analyst Program) additionally requires approval by three-quarters (3/4) of votes cast.
- 11.4 An amendment is effective only upon any approval, filing, or acknowledgement required by ULSU policy. If ULSU requires revisions, the amendment shall return to the membership unless the revisions are purely clerical or mandatory and do not materially alter its substance.

12. Accountability

- 12.1 The CMC will act in accordance with the Constitution, Bylaws, and Policies of the ULSU and the University of Lethbridge, and will comply with Human Rights Legislation at all times.
- 12.2 Members and executives will conduct themselves professionally at all Club events, case competitions, and interactions with industry guests, sponsors, and alumni, recognizing that they represent both the Club and the University of Lethbridge.
- 12.3 If the Club is dissolved or de-ratified, the Executive, under the direction of the Club President, shall: (a) close all Club bank accounts and pay all lawful liabilities; (b) take a

complete inventory of Club property and dispose of it in accordance with ULSU policy; (c) transfer or securely delete all Club records; (d) revoke all Club credentials and access; (e) cancel outstanding events and contracts where possible; and (f) provide written confirmation of dissolution to the ULSU. Any funds remaining in the Club account after payment of lawful liabilities will be disposed of in accordance with ULSU policy. No remaining property or funds may be distributed to members.

- 12.4 All Club accounts, contact lists, work product, sponsorship records, credentials, email accounts, and social media access belong to the Club and not to individual officers. Only authorized persons may issue official statements on behalf of the Club. Subject to section 6.6A, the Club President may issue official statements on Club-wide matters, and each President on matters specific to their Applicable Stream. The VP, Finance & Internal is the Club's designated records and privacy contact unless the Executive appoints another officer by recorded resolution.

13. Club Email and Communications

- 13.1 The Club will maintain a uleth.ca email account, created through the University I.T. Solutions Centre, as its official point of contact.
- 13.2 Access to the Club email account and any Club social media accounts will be transferred to the incoming Executive as part of the transition required under section 8.3.

14. Interpretation and Hierarchy

- 14.1 The definitions at the beginning of this Constitution apply throughout. In addition, in this Constitution: "in writing" includes email or another electronic method approved by the Executive; "signed" and "signature" include an electronic signature or a submission sent from the member's email address on the Club membership list, except where a financial institution, the ULSU, or the University requires otherwise; "majority" means more than half of votes cast, excluding abstentions, unless otherwise stated; and "ULSU policy" includes applicable bylaws, policies, procedures, sanctions, and written conditions of ratification.
- 14.1A Where this Constitution requires a fraction of a number of persons, the required number is rounded up to the next whole person. For example, two-thirds ($\frac{2}{3}$) of a Full Executive of five (5) is four (4), of four (4) is three (3), and of three (3) is two (2).
- 14.2 Mandatory ULSU and University rules prevail over this Constitution. The remaining provisions continue in force to the greatest extent possible.
- 14.3 A deadline stated in days means calendar days unless stated as business days. If the final day falls when the University is closed, the deadline moves to the next day the University is open.

15. Confidentiality and Records

- 15.1 Executives and members shall use Confidential Information only for authorized Club purposes and shall not disclose it except as required by law, University or ULSU policy, procedural fairness, or authorized Club business.
- 15.2 In addition to the definition in the Definitions section, Confidential Information includes applications, interview records, member contact information, non-public sponsor communications, credentials, financial information, complaints, and deliberative records.
- 15.3 Confidentiality obligations continue after a person leaves the Club. This section does not prohibit good-faith reporting to ULSU, the University, law enforcement, a regulator, or a professional adviser.

16. Complaints and Non-Retaliation

- 16.1 A member may submit a good-faith complaint about a breach of this Constitution or applicable policy to a non-conflicted Executive member or to ULSU.
- 16.2 The Club shall use a fair, timely, confidential, and proportionate process. The respondent shall receive sufficient notice and an opportunity to respond before final discipline, subject to temporary protective measures that are reasonably necessary.
- 16.3 Retaliation against a person for making, supporting, responding to, or participating in a good-faith complaint is prohibited.
- 16.4 The Executive may adopt a complaints procedure consistent with this Constitution and ULSU policy.

Schedule A – Founding Executive

- A.1 The following individuals constitute the founding Executive of the University of Lethbridge Capital Markets Club, as referenced in sections 6.1 and 9.8 of this Constitution. The founding Executive takes office upon ratification of the Club by the ULSU and serves until April 30 of the academic year in which the Club is ratified, subject to confirmation by a vote of the Voting Members at the first General Meeting following ratification.
- A.2

Club President:	James Reti
President, Investment Banking:	Cody Ives
President, Sales and Trading:	Bill Houenagnon
VP, Operations & External:	Jovin Bach
VP, Finance & Internal:	Tristen Harvey
- A.3 The founding Executive agrees to abide by this Constitution and all applicable ULSU bylaws and policies from the date of ratification.